

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, August 05, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, August 05, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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23CV-00868	Jeremiah Garcia vs. Merced County
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Trial Setting Conference

Appearance required.

23CV-02212	In the Matter of: Inspection of: Assessor's Parcel Nos. 045-190-075 and 045-190-076 (23570 Geer Ave., Hilmar CA 95324)
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Review of Case Status

Appearance required.

24CV-05727	Margaret Estrada, et al. vs Fratelli Beretta USA, Inc.
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Review of Case Status

VACATED. Final approval and judgment was signed October 2, 2025.

25CV-06357

Vanessa Arteaga, et al. vs Toyota Motor Sales U.S.A., Inc.

Order to Show Cause Re: Dismissal - Notice of Settlement

CONTINUED pursuant to the declaration of Pauliana N. Lara, Esq. filed July 29, 2026, to November 12, 2026, at 8:15 a.m.

25CV-06689

Katrina Louis vs General Motors, LLC

Demurrer to Plaintiffs' First Amended Complaint

Defendant's demurrer to the fifth cause of action is SUSTAINED, WITH LEAVE TO AMEND, on the basis of failure to state facts sufficient to constitute a cause of action.

Here, Plaintiff does not allege enough facts to support a fraudulent inducement concealment cause of action. For example, and not exhaustive, the complaint (1) fails to sufficiently allege the required transactional relationship between Plaintiff and GM; (2) fails to allege sufficient facts identifying the specific marketing statements that were misleading and that were relied upon by Plaintiff; and (3) fails to allege sufficient facts regarding personnel, conversations, or content of omissions at the point of sale.

Defendant's demurrer as to the fifth cause of action being barred by the economic loss rule is SUSTAINED, WITH LEAVE TO AMEND.

The Court in *Rattagan* stated, "the economic loss doctrine applies when the parties have entered into a contract; the plaintiff sues for tort damages, alleging defendant failed to perform as the contract requires; and negligently caused economic losses flowing from the breach. In such a case, plaintiffs are generally limited to recovery of those economic damages and cannot seek to expand their remedies beyond those available in contract. The doctrine does not apply if defendant's breach caused physical damage or personal injury beyond the economic losses caused by the contractual breach and defendant violated a duty flowing, not from the contract, but from a separate, legally recognized tort obligation." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 44.)

In short, as long as Plaintiff's claim for fraudulent inducement by concealment allege fraudulent conduct independent of Defendant's alleged warranty breaches, it has been found, "[f]raudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court . . ." (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843.)

Plaintiff's first amended complaint contradicts itself on this point. While the fifth cause of action appears to allege fraudulent conduct independent of the alleged warranty breaches, the complaint alleges at paragraph 10 "These causes of action arise out of the warranty obligations of GM . . ." (FAC ¶ 10). As this may be clarified by Plaintiff, the demurrer is sustained with leave to amend.

Plaintiff is ordered to file an amended complaint within ten (10) days of this order.

Motion to Strike Portions of Plaintiffs' First Amended Complaint for Non-Compliance with CCP 871.24

Defendant's motion to strike is GRANTED WITH LEAVE TO AMEND.

Plaintiff failed to plead facts sufficient to support a claim for civil penalties pursuant to Code of Civil Procedure section 1794, subdivision (c) or (e).

The Court will sign the order lodged with the court on June 17, 2026.

Plaintiff is ordered to file an amended complaint within ten (10) days of this order.

26CV-02848 Marco Estrada vs Luis Soto

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service was filed July 29, 2026.

26CV-02885 In the Matter of : Seven Thousand Nine Hundred Thirty-Four Dollars
(\$7,934.00) U.S. Currency

Status Conference

Appearance required.

26CV-02942 People vs. 1,627.00 U.S. Currency

Status Conference

Appearance required.

26CV-02961 People vs \$6,917.00 US Currency

Status Conference

Appearance required.

26CV-03083 Yamilet Cervantes, et al. vs Jose Dominguez, et al.

Petition for Minor's Compromise

The petition for approval of the minor's compromise is GRANTED.

The Court will sign the orders lodged with the court on July 14, 2026.

A status conference is set for December 2, 2026, at 8:15 a.m. in Courtroom 8, for confirmation of deposit of the minor's funds into the blocked account.

If Petitioner files the Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account (MC-356) at least five (5) court days before the hearing, the status conference will come off calendar.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, August 05, 2026
10:00 a.m.

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Case No.	Title / Description
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21CV-01626	LVNV Funding LLC vs. Eligio Lazo
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Order to Show Cause Re: Dismissal - Notice of Settlement

On November 4, 2021, Plaintiff filed a notice of conditional settlement indicating that a request for dismissal would be filed no later than July 18, 2026. No request for dismissal has been filed. If no party appears to request more time to complete the settlement, the Court will dismiss the action pursuant to rule 3.1385(c)(2) of the California Rule of Court.

24CV-05051	Citibank, N.A. vs. Martha A Rivera
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Status Review of Settlement

Appearance by Plaintiff's counsel is required. If Plaintiff files a notice of settlement or request for dismissal prior to the hearing, the hearing will be vacated. On July 7, 2026, counsel for Defendant filed a case management statement indicating that the case has resolved.

25CV-00156

Cavalry SPV I, LLC vs. Laura Vargas

Court Trial

Appearance required. The Court notes that Plaintiff recently filed a motion for an order deeming admitted requests for admission that is scheduled for hearing on August 24, 2026, at 1:30 p.m. in Courtroom 9.

25CV-06771

Wells Fargo Bank, N.A. vs. Rita Stinson

Motion for Summary Judgment

The unopposed motion for summary judgment by plaintiff Wells Fargo Bank, N.A. is GRANTED. Upon consideration of all the evidence set forth in the papers, including Defendant's responses to requests for admission and the declaration of plaintiff's Loan Workout Specialist William H. Haas authenticating business records supporting Plaintiff's undisputed material facts, the Court finds that there is no triable issue of material fact and Plaintiff is entitled to judgment as a matter of law. Plaintiff has proven each element of its cause of action for breach of contract. The burden therefore shifts to Defendant to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(1).) By not opposing the motion, Defendant has failed to meet her burden.

Judgment shall be entered for Plaintiff and against Defendant Rita Stinson. The Court will sign the proposed order and proposed judgment lodged with the moving papers.

The case management conference scheduled for November 13, 2026, is vacated. The order to show cause why sanctions should not be imposed on Plaintiff's counsel for failure to attend the June 12, 2026, case management conference is discharged and the hearing on November 13, 2026, is vacated.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Ex Parte Applications Calendar
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, August 05, 2026
1:15 p.m.

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Case No.	Title / Description
26CV-02295	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
	Ex Parte Motion for Order Setting Aside Court Judgment and Staying Execution of Judgment
	Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil Long Cause Court Trial
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, August 05, 2026
1:30 p.m.

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Case No.	Title / Description
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24CV-00522	Jefferson Capital Systems LLC vs. Maria Urias Rodriguez
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Court Trial

Appearance required.

24CV-01967	LVNV Funding LLC vs. Rosalie Garcia
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Court Trial

Appearance required.

24CV-02791	Credit Corp Solutions Inc. vs. Samuel Rodriguez
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Court Trial

Appearance required.

25CV-00067

OneMain Financial Group, LLC vs. Cesar Castaneda Nunez

Court Trial

Appearance required.

26CV-02929

Reza Roodsari vs. City of Merced

Ruling re: Petition for Review of Administrative Decision

The Court's ruling will be announced at the hearing.
